

The Impact of Defendant Socioeconomic Status and Appearance on Mock Juror Decision-Making



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Introduction

- Judicial decisions are **shaped by both legal and extralegal factors**, including socioeconomic status (SES), race, gender, and defendant-victim relationships.
- Defendant behavior that **aligns with crime stereotypes is attributed to dispositional factors**, resulting in stricter judgments (Bodenhausen & Wyer, 1985).
- Defendants with **high-SES** face stricter punishments due to greater perceived accountability, while **low-SES** increases the likelihood of guilt judgments and harsher sentencing (Devine & Caughlin, 2014; Fragale et al., 2009).
- People associate property crimes like **fraud and embezzlement to individuals of high-SES**, while crimes like **assault, murder, and theft are linked to those of low-SES** (Park, 2015).
- Defendants are judged more guilty and receive higher sentences when they appear **less attractive, less trustworthy, more dangerous, or more stereotypically criminal** (Devine & Caughlin, 2014; Dumas & Testé, 2006; Wilson & Rule, 2016; Brown et al., 2018).
- The defendant's criminal appearance was **evaluated based on four traits**: attractiveness, trustworthy, perceived dangerousness, stereotypically criminality.
- This study examined the impact of extralegal factors, such as socioeconomic status and appearance, on mock jurors' decision-making.

Objectives

Hypothesis

Mock juror's judgments on sentence

- In **assault cases**, higher sentencing judgments are anticipated for a defendant with low-SES and high criminal appearance.
- In **embezzlement cases**, higher sentencing judgments are anticipated for a defendant with high-SES and low criminal appearance.

Methods

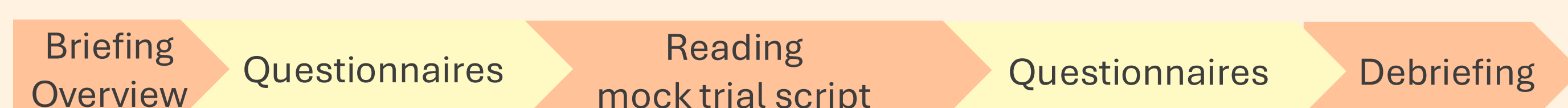
Design 2 (crime type: assault, embezzlement) x 2 (SES: high, low) x 2 (defendant's criminal appearance: high, low) between subject design

Participants 251 Korean jury-eligible participant, 124 female, 127 male

Age 20s: 25.1%, 30s: 25.5%, 40s: 24.7%, 50s: 24.7%

Material 2 male photographs were selected out of 9 photos generated by AI, based on attractiveness, trustworthiness, perceived dangerousness, and criminal appearance.

Procedure (conducted online)



Demographics
gender, age, etc

Judgment
Sentencing
in month

Demographics
Participant's SES

8 Conditions
Participants were
randomly assigned

Trial script

- Derived from a real court judgment
- Sentence length controlled
- Dialogue-based mock trial scenario
- Photo presented during defendant questioning

Defendant
a 50-year-old male

High SES:
Master's degree, Large corporation, high income

Low SES:
Vocational high school diploma, Small business, low income



↑ high ($M=17.2$) low ($M=12.8$) ↓



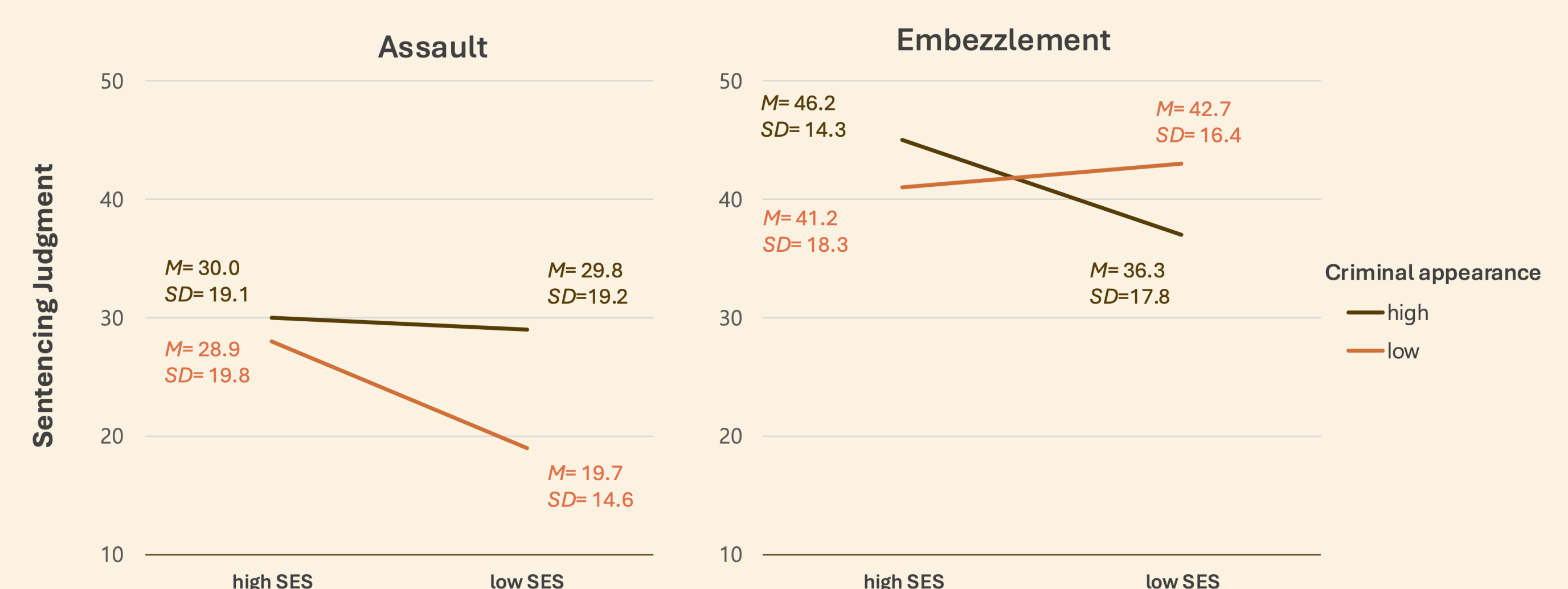
Results

Manipulation check was successful

Participants perceived the defendant with high criminal appearance as less attractive, less trustworthy, more dangerous, and more stereotypically criminal than the defendant with low criminal appearance, $t(249)=2.37$, $p=.019$.

Sentencing Judgment

- Crime type:** embezzlement ($M=41.6$, $SD=16.9$) > assault ($M=27.2$, $SD=18.6$), $F(1,243)=42.8127$, $p<.001$, $\eta^2=.0143$
- Defendant's SES:** high ($M=36.4$, $SD=19.3$) > low ($M=32.3$, $SD=18.9$), $F(1,243)=4.0209$, $p=.046$, $\eta^2=.013$
- Crime type X Defendant's SES X Defendant's criminal appearance:** a significant three-way interaction was observed, $F(1,243)=5.2427$, $p=.023$, $\eta^2=.018$



Sentencing Judgment controlling for participant's SES $F(4, 246)=13.0$ ($p<.001$), $R^2=.0175$, Adjusted $R^2=.0162$, $D-W=2.029$

predictor	B	SE	β	t	p
Defendant SES	-4.39	2.22	-0.229	-1.98	0.049
Crime type	13.93	2.23	0.726	6.23	<.001
Participant SES (covariate)	-4.77	2.25	-0.124	-2.12	0.035

Conclusions

- Crime type** was the most influential factor in sentencing judgments.
 - Embezzlement cases led to higher sentences than assault, likely due to greater perceived societal responsibility in financial crimes.
- The defendant's SES** significantly affected sentencing judgments.
 - Higher SES defendants were generally given harsher sentences.
- The defendant's appearance** did not have a direct effect on sentencing judgments.
 - The defendant's appearance showed no main effect but was found to influence outcomes when combined with crime type and the defendant's SES.
 - In assault cases, defendants with more typical high criminal appearance (matching criminal stereotypes) received higher sentences regardless of SES.
 - Embezzlement cases had no significant effect.
 - Whereas defendants with low criminal appearance were assigned lower sentences, particularly in low-SES conditions.
- Participants' SES** also significantly affected sentencing judgments.
 - Participants with lower SES assigned higher sentencing judgments.
 - When participant's SES effect was controlled, defendants with high-SES were still assigned higher sentences than those in low-SES.
 - This underscores the importance of addressing biases in jury decisions to ensure fair trials.

References

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